

26VECV02995 26VECV02995

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Tentative Ruling

Figueroa v. Hyundai Motor America,

Case no. 26VECV02995

Hearing date August 27, 2026

Defendant

Hyundai's Motion to Compel Arbitration

Plaintiff

Figueroa sues defendant Hyundai Motor America for violations of the

Song-Beverly Act. Defendant moves to compel arbitration; plaintiff opposes.

Defendant

requests judicial notice of the complaint. GRANTED pursuant to Evid. Code

§452(d).

California

public policy strongly favors arbitration. Code Civ. Proc. §1280 et seq., Madden

v. Kaiser Found. Hosps. (1976) 17 Cal.3d 699, 706. Under the California

Arbitration Act, if there is a valid written agreement to arbitrate,

arbitration is mandatory. Code Civ. Proc. §1281.2. The opposing party bears the

burden of proving defenses to arbitrability, including unconscionability. See

Pinnacle Museum Tower Ass'n. v. Pinnacle Mkt. Dev. (US), LLC (2012) 55

Cal.4th 223, 236. "[T]he doctrine of unconscionability has both a procedural

and substantive element, the former focusing on oppression or surprise due to

unequal bargaining power, the latter on overly harsh or one-sided results." Sanchez

v. Valencia Holding Co., LLC (2015) 61 Cal. 4th 899, 910.

Defendant

moves to compel arbitration, arguing the owner's handbook contained a warranty,

which purports to be binding. See Decl. Ameripour, exh. 2. Defendant argues

arbitration is mandatory under the Federal Arbitration Act ("FAA"), as the

warranty is in writing, and the sale of vehicles is an interstate commerce

activity. See 9 U.S.C. §2. Defendant argues the warranty subjects any

Song-Beverly Act claim to arbitration under the FAA. Decl. Ameripour, exh. 2,

p. 14.

Plaintiff

argues a warranty in an owner's handbook does not create a binding agreement to

arbitrate. Plaintiff argues defendant does not provide evidence that the

handbook was shown to plaintiff at the time of purchase nor that the arbitration agreement was discussed. Plaintiff argues defendant cannot show any offer of arbitration terms, acceptance by plaintiff or contract formation between the parties as to arbitration. Plaintiff's arguments are well taken.

Initially,

a court must determine whether a valid agreement to arbitrate exists. *Mitsubishi Motors Corp. v. Soler Chrysler-Plymouth, Inc.* (1985) 473 U.S. 614, 626.

Under California law, the party seeking to compel arbitration has the burden of proving its existence by a preponderance of the evidence. *Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413.

Defendant

offers no signed, written agreement containing an arbitration provision, nor any communications or other acts by plaintiff demonstrating the parties entered into an agreement to arbitrate. Defendant's argument in reply that other courts have ruled in favor of arbitration in similar circumstances is not well-taken.

Defendant's reliance on federal district court decisions, even those in the Central District of California, is misplaced. See 8/20/26 Decl. Ameripour, paras. 2-5. Decisions of federal trial courts are not binding precedent.

The

law is clear: an essential element of any contract is the consent of the

parties, or mutual assent, which must be communicated by each party to the

other. See *Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270; Civ. Code,

§1565. A unilateral arbitration clause in an unsigned owner's handbook is not

sufficient to find that a contract was formed. Defendant failed to meet its

burden. DENIED.